

### Calendar Line 3

**Case Name:** *Arno Murayama v. James Nielsen, et al.*

**Case No.:** 24CV441172

Before the Court is Plaintiff Arno Murayama's ("Plaintiff") motion for leave to file a Third Amended Complaint ("TAC").

This action arises out of residential landlord-tenant relationship and a dispute over the status of the tenancy. Plaintiff initiated this action in June 2024. The operative Second Amended Complaint ("SAC") was filed on July 17, 2025 and asserts the following causes of action: (1) breach of implied warranty of habitability; (2) constructive eviction- breach of covenant of quiet enjoyment; (3) violation of Civil Code section 1950.5- failure to conduct initial moveout inspection; (4) bad faith retention of security deposit; (5) breach of the lease agreement; (6) conversion; (7) intentional infliction of emotional distress ("IIED"); (8) violation of Penal Code section 496; (9) violation of Business & Professions Code section 17200 ("UCL"); (10) violation of Civil Code section 1159; and (11) trespass.

On January 28, 2026, Defendants filed a motion for summary adjudication of the first, second, fifth, seventh, ninth and tenth causes of action. Two days later, Plaintiff filed the instant motion for leave to file a TAC. His subsequent *ex parte* application to advance the hearing on the motion for leave to be heard by before the motion for summary adjudication was denied by the Court. Defendants' motion for summary adjudication was opposed by Plaintiff and after the hearing on May 6, 2026, the Court issued its final order on May 15, 2026.

According to Plaintiff, the proposed TAC does not contain any new causes of action or factual incidents. Instead, the changes made as compared to the SAC are "clarifying and organizational changes" and alterations which "address[] the issues raised in Defendants[]" Motion for Summary [Adjudication], specifically:

- More details about habitability defects and purported harassment and interference with possession that occurred during the period of February 15 through April 2024;
- Clarification about the amount of dwelling units on subject property;
- Additional statutory language and case authority;
- Consolidation of security-deposited issue into one cause of action into three;
- Clarification of constructive eviction theory;
- Reduction of conversion claims from five to four;
- Clarification of damages theories;
- Clarification of standing issues and status of tenancy

"Generally, motions for leave to amend are liberally granted." (*Royalty Carpet Mills, Inc. v. City of Irvine* (2005) 125 Cal.App.4th 1110, 1124 (*Royalty Carpet*).) Courts usually do not consider the merits when determining whether to allow an amendment. (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048.) However, "leave to amend should not be granted where, in all probability, amendment would be futile." (*Vaillette v. Fireman's Fund Ins. Co.* (1993) 18 Cal.App.4th 680, 685; See *Royalty Carpet*, 125 Cal.App.4th at 1124 ["When amendment would be futile ..., the trial court does not abuse its discretion in denying ... leave to amend."].)

In opposing the motion, Defendants assert that it should be denied because the proposed TAC adds a “new” second cause of action for violation of Civil Code section 1946.2 less than a month before trial and would be a “waste of time and resources” and further, new allegations by Plaintiff that he “continuously occupied the rental Property as his residence during the tenancy” (TAC, ¶ 59) directly contradict the allegations of the TAC that he “worked and lived in San Francisco during the week and lived with Mr. Bishop on the weekends in the rental Property. After Mr. Bishop’s death, Plaintiff resided in the Rental Property until April 30, 2024” (SAC, ¶ 19.) Defendants additionally argue that Plaintiff does not have standing to allege a violation of Civil Code section 1946.2.

At the outset, the Court disagrees with Defendants’ characterization of Plaintiff seeking leave to amend as being “on the eve of trial.” Plaintiff’s motion for leave to amend was filed in January, after Defendants declined to stipulate to the filing of the TAC. Defendants were certainly well within their rights to decline to stipulate, but their description of Plaintiff’s actions is not wholly accurate.

It is also not accurate to say that Plaintiff is attempting to “add” a new cause of action; in the SAC, the second cause of action purports to assert a claim for violation of Civil Code section 1946.2 and constructive eviction just as the TAC does, and the facts underlying these claims are substantively the same. Thus, the TAC does not significantly alter the SAC in the manner argued by Defendants, and therefore the standing argument raised by them is arguably one that could have been raised previously in connection with the SAC.

As for Defendants’ contention concerning contradictory allegations, the Court is not persuaded, at least at this juncture, that the cited allegations are actually contradictory. The allegation that Plaintiff “continuously occupied the rental property” does not necessarily contradict the allegation that he resided there with Mr. Bishop on the weekends if he continuously occupied the dwelling on the weekends over an extended period of time and otherwise treated it in a manner that a residence would be treated (e.g., as the individual’s mailing address, etc.).

Ultimately, Defendants have not demonstrated that Plaintiff’s proposed amendments are futile or would significantly prejudice them.<sup>5</sup> As such, in line with the liberal policy permitting amendment, Plaintiff’s motion for leave to file the TAC is GRANTED.

The Court will prepare the final order.

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<sup>5</sup> Defendants assert that granting leave to amend will cause further delay and trial is imminent. Plaintiff, who has previously opposed Defendants’ efforts to continue the trial, suggests the amendment will not impair the trial schedule because “the changes clarify the issues,” “the facts are already known,” and the “proposed amendment narrows and organizes claims, which promotes efficiency rather than delay.” Which party is correct remains to be seen. Plaintiff’s third effort to plead his case at minimum *invites* further litigation and places the pleadings into a state in which they are no longer at issue one month before the scheduled trial date. Indeed, Plaintiff’s effort to plead a cause of action for breach of written lease in the Fourth Cause of Action both “on behalf of [the estate]” and “[i]ndependently,” in light of the Court’s ruling after the motion for summary adjudication that no individual action for that claim lied as to the SAC, is itself likely to result in further discussion. Plaintiff may be getting his pleading cake now but not eating any of it until a trial much later than June 2026.

## Calendar Line 4 - 6

**Case Name:** *Hamid Khazaeli v. Julie B. Cliff, et al.*

**Case No.:** 24CV448245

Before the Court are the following motions: 1) Plaintiff's "MOTION FOR SANCTIONS AND TO COMPEL FURTHER DAY OF DEPOSITION," filed on February 17, 2026, at 10:21 p.m., and 2) Plaintiff's "MOTION TO SEAL," filed February 19, 2026, at 9:17 a.m.

### **MOTION FOR SANCTIONS AND TO COMPEL FURTHER DAY OF DEPOSITION**

Plaintiff filed these motions on February 17, 2026, at 10:21 p.m.

As a threshold matter, multiple motions should not be combined into a single filing. (Gov't Code, § 70617(a)(4) [setting forth the required filing fee for each motion, application, or any other paper or request requiring a hearing]; see also Weil & Brown, Civil Procedure Before Trial, [8:1140.1] at 8F-60 (The Rutter Group 2011) ["Motions to compel compliance with separate discovery requests ordinarily should be filed separately."].) Among other things, combining multiple motions under the guise of one motion with one hearing date manipulates the Court's reservation system, understates the number of matters before the Court on a given day, and disturbs the Court's ability to efficiently manage its docket.

Plaintiff's motions for sanctions and for a further day of deposition are DENIED.

As for sanctions, the Notice merely states that Plaintiff requests "an order imposing sanctions". This is insufficient. "Notices must be in writing, and the notice of a motion ... must state when, and the grounds upon which it will be made, and the papers, if any, upon which it is to be based. If any such paper has not previously been served upon the party to be notified and was not filed by him, a copy of such paper must accompany the notice." (Code Civ. Proc., § 1010.) In addition, although issue, evidentiary, and terminating sanctions are not mentioned in this original Notice, a motion for issue or evidentiary sanctions requires a separate statement. (Cal. Rules of Court, Rule 3.1345(a)(7).) Plaintiff failed to accompany the notice with a separate statement.

Subsequent to the original filing, Plaintiff has engaged in a scattershot effort to supplement his materials:

On February 17, 2026, at 11:30 p.m., Plaintiff filed an "Amended Notice of Motion." The "Amended Notice" appears to be identical to the Notice and was also not accompanied by a separate statement.

On February 19, 2026, Plaintiff filed "Conditionally Under Seal" the same purported collection of motions, but the "Notice" filed on this date seeks "order imposing sanctions including monetary sanctions." This notice still does not mention issue, evidentiary, or terminating sanctions. It is accompanied by a longer declaration with attached exhibits, but still no separate statement directly pertaining to the motion itself.